

TRIBHUVAN UNIVERSITY
Faculty of Humanities & Social Sciences
Padma Kanya Multiple Campus
Program: Bachelor of Public Service and Governance (BPSG)
(An Autonomous Program)
Pre-Board Exam 2082 (Chaitra)

Subject: Public Service Management-II

Code: BPSG 454

Semester: VII

Full Marks: 60

Pass marks: 30

Time: 3 hours

Students are required to answer in their own words as far as practicable. The figure in the margin indicates full marks.

Group-A

*Reasoning Type
Question*

(1x20=20)

1. A team of scientist developed a super intelligent machine capable of predicting crimes with 99% accuracy before they occur. The machine was handed over to the Government of Nepal. For enhancing the public safety, police begin arresting individuals before the crime is committed. On this backdrop answer the following question:
 - i. Is it justified to arrest someone for a crime they have not yet committed? Can the individual freedom be limited in the name of prevention of crime? Give your opinion.
 - ii. If the machine is 99% accurate, it still means some innocent people may be wrongly targeted. Should society accept such risks for greater security? Why or why not?
 - iii. Suppose, you were a policy expert and chief advisor to the Government of Nepal, what advice would you give regarding the use of this machine? Consider public safety and public trust in your answer.

Group-B

Long Answer questions (Any five)

(5x5=25)

2. Estonia is exemplary in the field of innovating Public Services. Justify the statement.
3. Make a list of various election malpractices you observed in the election of House of Representatives. (2082)
4. Identify and discuss key personal insights or realizations you gained upon completing the course in Public Service Management II.
5. Evaluate the role of private sector in the development of Nepal.

2157

Code No. :

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TRIBHUVAN UNIVERSITY
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Office of the Examination Committee

No.

ANSWER BOOK I

Code No.

Students are required to write their answers on both side of the page and clearly mention the answer number.

Marks Obtained	
Ans. 1	
Ans. 2	
Ans. 3	
Ans. 4	
Ans. 5	
Ans. 6	
Ans. 7	
Ans. 8	
Ans. 9	
Ans. 10	
Ans. 11	
TOTAL	

INSTRUCTIONS TO CANDIDATES

- (1) Each Candidate will write legibly on the title page her **Symbol NO. REGISTERED NO.** but not her name. This should be done in each answer-book used before beginning to write inside.
- (2) No loose papers will be provided for scribbling and no other paper should be brought in for this purpose. Any candidate found with loose paper in her possession **WILL BE EXPELLED**. All work must be done in the answer sheet provided and pages **MUST NOT BE TORN OUT**. The answer sheet provided **CANNOT BE REPLACED BY ANOTHER**. but, if necessary, an additional page will be given. Anything cancelled in the answer sheet not be looked into.
- (3) Candidate is forbidden to write answers or anything else on the question - paper
- (4) No candidate will be allowed to leave the room until one hour has passed from the time when the question papers are distributed.
- (5) Candidate who uses two or more answer-sheets should see, before handing over to the invigilator, that they are properly stitched together.

Name of Student:

Aaryaka Timsina

Level Bachelor

Semester/Year 7th

Roll No. 16

Roll No. in Words Sixteen

T.U. Regd. No.

Course Title Public Service Mgmt. II

Course Code No. BPSG 454

Date 082/12/03

Signature of Student

Total Marks in Words:

Signature of Superintendent

Signature of the Examiner

Signature of Scrutiny Board:

Group 'A':

Qn. 1.

Instance:

- Development of super intelligent machine
↳ predict crimes with 99% accuracy.
- Machine handed to Gov. of Nepal.
- Police began arresting individual before crime.

(i)

(a) Arguments for justified arresting

- Because the machine has 99% accurate and specially in heinous crimes like murder, abuse, rape and sensitive cases could be prevented.
- If we know for sure that they will be committing crime, they will go to jail sooner or later and in one way or another so it is justified.
- If the machine was tried and tested among many population and the result were 99% makes it an reliable machine.
- It does enhance the safety and security of the overall population.
- Greater Good for Greater Numbers of People. - Bentham
(बहुजन हिताय बहुजन सुखाय)

⑥ Arguments against arrest

- I believe in the freewill of human beings and even if they were going to commit crime in the time of machine usage, they could change their mind.

- Some people have impulsive way of saying ~~or~~ about committing crimes especially when there is heated arguments, do not mean they are actually going to do it.

Eg: famous saying during conflicts

↳ "I will kill you" or "I will do you bad" or "wait and watch what I will do to you"

- Predictions are not always correct so even if it has 99% accuracy, we should not forget the remaining 1%.

- People have many thoughts running in their mind and maybe some are about crimes and conducting it and even if they are able to predict, where are they going to keep all of the detainees, I'm sure the existing jails and detention center would be largely insufficient and fall short.

- From an economic point of view, it would increase the expenditure of the GON as they would have to build ~~jails~~ jails, recruit law enforcement agents, provide them training and ~~all~~.
- There should be increased security in the jails and detention centers because we could catch serial killers and so many criminals which would surge in training programs and recruitment.
- I'm sure, in any point of time, when we are angry towards someone have immaturely thought about conducting crime although ~~if~~ we would never work on it, so does that ~~make~~ all of us criminals?
- There are many crime thriller junkies who love to watch criminal, murder mystery movies and after completion of the scenes of the murders or other crime goes through their thought process and the ~~machine~~ ^{might} picks up the movie scene does that ~~make~~ them a criminal?
- ∴ I feel like the arguments against the arrest are more heavy so I would say not to arrest the criminals as that could be a movie scene going through their mind or just impulsive thoughts.

Well articulated

(ii)

② Society should accept such risks for:

- Reduces the crimes and saves life of thousand of people.
- Looking at the records and conducting background checks could reduce the risks.
- Could be an excellent step in ensuring a fair and just environment.
- Especially if corruption can be predicted, with it being the master of crimes, it could actually slay rocket the developmental activities of the country.
- It could be a revolutionary step in making people accountable for their actions.
- With the law enforcement of Nepal being weak, we could solve the cases of rapes and small children like Nirmala Panta and other victims who had the whole life ahead of themselves could be saved.

- There could be people like Ted Bundy who was a law student himself and actually defended him in the court, although he couldn't be successful, there could be so many people like him who use their knowledge and power to mask heinous crimes.
- There is a character called "Dexter" in one of fictional series who is the forensic scientist of the Miami Police department who takes the law in his hand and kills people who ^{commit} crime.
- Although, criminals are being executed and it portrays that he is "vigilante", it doesn't explain all of the murder that he commits, although all of them were criminals.
- And specially since he is a forensic expert of police department he can just manipulate the evidence.
- So there might be people like him who are so close to the law enforcement that they take that power into their hands and go on with life without ever being caught.

- Crime, the word in itself is a very broad word for a machine capable of finding out criminals.

As crime ranges from:

- Corruption
- Drug trafficking
- Human trafficking
- cartels.
- Smugglers
- Money laundering

and the list goes on.

- And as it is a machine of predicting "crimes"
- not specific crimes but just crimes means the whole idea of post modernism could be possible because once we curb the criminals before the crime takes place we could have upperhand.

THIRTEEN There is actually, a fictional book named "Thirteen" which delves about how the Judge that is overseeing a crime, is the one who committed it, so we could actually find out those kind of people.

⑥ Society should not accept such risks as:

- The scientist have given 99% accuracy, which I am going to assume is tried and tested so still the 1% are innocent there.
- It is still a machine after all, and could malfunction or provide glitches with the software updates and other maintenance work could be risky.
- And also, not feeding to conspiracy which seems, all over the internet of "विदेशी हस्तक्षेप" what if it is under their control after all.
 - We have no way of actually knowing what goes inside the mind of human so we could be detaining innocent people
 - What if the scientists developed it as a tool to their advantage, reduce their competition by putting them in jails.
 - We would have no device of scrutinizing it.

→

✓ ✓ Good Doubt.

- There are so many instances where the convicted "felons" are falsely convicted.
 - There is a very famous movie called "Shawshank Redemption" which revolves around the life of fellons in the Shawshank jail and many of them claim to be innocent and were falsely accused.

(prison corruption)
- Even when we don't have any machines there is a famous saying "innocent until proven guilty" but if we detain them before the crime is proven how would we assure it.
- Also the form of natural law and due process must be followed in all cases.

Natural law

Audi Alterem Partem.

- ↳ Right to be heard.
- ↳ But how would they defend themselves when the crime hasn't even occurred

Nemo Iudex in causa Sua.

- ↳ Right against bias.
- ↳ we couldn't call it bias exactly but if the prediction of let's say,

head of law enforcement comes,
would he still be in jail?

Due process

↳ Due process is all about the rights and following formal procedures ensuring fair just practices are followed.

↳ Maybe we have to change the whole law in itself.

Some rights of due process:

- Right ^{against} to self incrimination
- Right to legal counsel.
- Right against inhuman treatment

And constitutional provisions of CON, 2015

Article 16: Right to live life with dignity

Article 17: Right to freedom.

Article 46: Right to legal treatment.

All of the due process mechanisms and natural law would be violated if we followed the machine.

∴ I don't think it is possible as the person could demand Judicial Review and change the decisions, remaining on the constitution of Nepal, 2015, so in order to fully implement it, constitution should be changed.

(iii)

If I were the policy expert and chief advisor to GoN, some advice regarding use of machine are:

- I would say to determine the accuracy, although it claims 99% accuracy, it doesn't make sense for government to blindly trust it.

↳ Make one person steal a chocolate
Good logic (as it doesn't say the scale of crime) and test its validity.

- Make constitutional amendments, maybe even that wouldn't be enough and change the constitution as the rule of law, due process and natural justice could interfere in the decision made by machine.

Good foresight
Great! Be prepared for protests and god forbid GenZ revolution 2.0 because citizens are not going to stay quiet about it, because after all before the crime has been committed they are innocent.

- Strengthen the monitoring mechanisms for the machine because as far as the machines are, they are just codes and

if the scientists made them, they sure can control the ~~so~~ result if they want to.

- Also, how would Nepal make a monitoring aspects as it is just relying on the machine.
- The 1% who are innocent and their family members and close friends who know that they are accused, could never trust the government decisions from now on.
- Government should be always accountable and answerable to the public, and public surely are not going to accept all the atrocities the machine will cause so there should be a action plan before even implementing it.
- Reiterating the fact that movies like Shawshank Redemption, Dexter, and books like "Thirteen" there might be people inside the law enforcement who could use it to their advantage, so the government should stay alert.
- There have been many cases with the "super intelligent" and "artificial intelligence" machine where it couldn't be relied.

→

- Especially in the US and UK media, AI chatbots are encouraging suicidal tendencies and suggesting self harm ~~tend~~ mechanisms on people.
- There are so many lawsuits for AI chatbots like ChatGPT claiming it encouraged suicide and that led to suicide of a teen.
- With that being said, even if the machines are "super intelligent" it could have some deficiency.

To justify:

- Human known for their exceptional empathetic and ethical boundaries could commit heinous crimes
- So, the "Artificial Intelligence" and the key word being "artificial" that doesn't have discretionary, empathetic or ethical boundaries and could change result according to the coding.
- The act of punishing individuals before the crime is committed seems like it directly invalidates the human rights.

And Nepal in its constitution has provision for National Human Right commi-

• session from article 148-149 in constitution of Nepal, 2015 so they will take some action.

- And even if they don't there are many international organization for protection of human rights which will give constant pressure to not use it.

* "Responsibility to Protect Doctrine"

- There is a famous doctrine called R2P full form being "responsibility to protect" which started from intervention in the Rwandian Genocide.
- Although this case is far from Genocide, the international bodies and association could interfere as they have the responsibility to protect Nepali people from being arrested without ever doing the crime committing.

So, I would say as the policy expert and chief advisor to GON, I wouldn't advise the state to go along it as it would be shut down from various reasons:

- Protests of citizens
- Civil unrest
- International Interventions

Human rights activists. etc.

∴ In conclusion;

(i) It is not justified to arrest as:

- Freewill of human & change
- Impulsive saying
- 1% dilemma
- Economic strain of gov....

(ii) Society should not accept risks as:

- Innocent people will be accused
- Potential glitches
- Law enforcing agencies could alter it
- Natural Justice and due process of law.

(iii) And would advice not to go ahead as:

- It would be shot down one way or another
- Public trust would deteriorate
- Gov. wouldn't be answerable
- It would seem arbitrary use of power.

21
✓✓✓
Genious
Extraordinary answer
Added 1 mark
as bonus
Anyaka, keep it up!!!

Code No. :

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2458

No.

ANSWER BOOK I

Code No.

Students are required to write their answers on both side of the page and clearly mention the answer number.

Marks Obtained		INSTRUCTIONS TO CANDIDATES	Name of Student:
Ans. 1		(1) Each Candidate will write legibly on the title page her Symbol NO. REGISTERED NO. but not her name. This should be done in each answer-book used before beginning to write inside.	<u>Aashna Pokharel</u>
Ans. 2			Level <u>Bachelors'</u>
Ans. 3			Semester/Year <u>7th</u>
Ans. 4			Roll No. <u>2</u>
Ans. 5			Roll No. in Words <u>Two</u>
Ans. 6		(2) No loose papers will be provided for scribbling and no other paper should be brought in for this purpose. Any candidate found with loose paper in her possession WILL BE EXPELLED. All work must be done in the answer sheet provided and pages MUST NOT BE TORN OUT. The answer sheet provided CANNOT BE REPLACED BY ANOTHER. but, if necessary, an additional page will be given. Anything cancelled in the answer sheet not be looked into.	T.U. Regd. No.
Ans. 7			Course Title <u>Public Service Management</u>
Ans. 8			Course Code No.
Ans. 9			Date <u>2082/12/03</u>
Ans. 10			Signature of Student <u>Aashna</u>
Ans. 11		(3) Candidate is forbidden to write answers or anything else on the question - paper (4) No candidate will be allowed to leave the room until one hour has passed from the time when the question papers are distributed. (5) Candidate who uses two or more answer-sheets should see, before handing over to the invigilator, that they are properly stitched together.	
Ans. 12			
Ans. 13			
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Ans. 18			
Ans. 19			
Ans. 20			
Ans. 21			
Ans. 22			
TOTAL			
Total Marks in Words:			

Signature of Superintendent

Signature of the Examiner

Signature of Scrutiny Board:

"Group: A"

Q1

i)

The above given backdrop shows the complexities of technological breakthroughs. It creates a very evident ~~dile~~ dilemma in the law enforcement agencies.

Arresting someone before the crime being committed sounds very unethical, but since the machine has 99% accuracy, it gives a preemptive & preventive opportunity to control the crime.

Taking these things into consideration, in my opinion arresting them for investigation and interrogation is fine. But only based on the machine's result detaining them is completely wrong without proper evidence.

The law doesn't allow any ~~inc~~ authority for ~~its~~ detention without evidence and proof.

But what can be done even if it has miniscule success, is that we could check for cue & signs.

For eg: A person who would commit crime would show symptoms.

A cold blooded killer always has Anti-Social Personality disorder (ASPD)

If the person's shows any psychological disorder, they can be surveilled to prevent their future crime.

✓ Good Example

Individual freedom while considering the principles of due process cannot be undermined in the name of prevention of crime.

Every individual must have a chance to present evidence.

He/she must have access to reasoned decision making.

Individual rights and freedom is not something that can be compromised

even if the compromising leads to prevention. ✓

With a rational view, does the arrest or detention completely prevent the crime 100%? Definitely not. The person who is destined to criminal act will perform ~~the~~ devious acts inside the jail too. ✓

And until & unless they are put in solitary confinement they may have other detainees. And it is not possible to throw everyone in the solitary confinement just because a machine with 99% accuracy predicted it. ✓

ii)

Even though the machine is 99% accurate, it is made with human assistance, so there will be some error no matter how big or small.

Therefore, arresting innocent people would not be worth the risk.

It could erode the public confidence and trust in the law enforcement.

The prevention of crime before it happens is done with a hope for peace & order. But arresting innocent people here & there definitely creates anarchy & chaos.

For instance, there are some cases where criminals have evaded lie detector tests. There are some cases where an innocent person with high anxiety has been guilty as per the lie detector.

So, what are the chances that this super intelligent machine of predicting crime wouldn't make the same blunder?

Even despite having pure intention of security & safety, this mechanism violates the fundamental rights and liberties of the individual.

All these scenarios brings out a most obvious question. The crime rate doesn't have any limit. It might be decreasing, it might be increasing.

Will it be possible for government to watch & arrest ~~it~~ each & every "future criminals"?

The answer is no, it's impossible. So if we cannot completely prevent the crimes from happening, the risk of capturing innocent people doesnot seem worth the hassles.

We should not hope for crimeless society. Exodication of crime will ultimately eradicate the society itself.

For instance, the machine detected a 2 year old child to committ crime, so will it be fair to arrest the 2 year old and id for the machine? The answer again is NO. Therefore individual freedom & rights is not be compromised.

Good Example

iii)

If I were the policy expert & chief advisor to the government of Nepal I would suggest following things:

- Conduct experiment:

To check the validity & accuracy of the machine I would suggest to conduct a experiment in a controlled environment just like Regulatory sandbox.

- Check for cues:

Instead of directly detaining them any sign of disorders and psychopathies must be checked for better prevention.

- Fundamental rights consideration:

Even though the machine exposes a society into peaceful path, fundamental rights and liberties of individuals must not be undermined.

- Consultation with the team of scientist who made it:

Before thinking about exposing it in the outer environment.

the pros, cons of the machine must be consulted with the team who developed it. ✓

While considering public safety & public trust, if I were a policy expert and my advice would be the final wordings, I would suggest the machine to ~~be~~ not being put into implementation. ✓

These kind of powerful machine may destroy whole humanity in the fore-sight. Yes, it prevents future crimes but at what cost? Eroding public trust, detaining a child if predicted criminal or torturing an innocent individuals? ✓

If it were upto me I would not approve the machine in implementation but ~~can~~ to respect the scientists efforts it can be museumed or use for research. ✓

Such machine

- "It is better to let 10 criminals be free rather than detaining an innocent one." ^{universal} This principle of criminal law should also be taken into consideration by government.

Overall, such machines don't have high success rate to risk the individuals rights & liberties and increase resentment in the public.

To sum up, this case shows how technologies brings out predicaments & conundrums.

AI and technologies might be a boon in many cases but it is also a beginning of human destruction of humanity. These kind of machine shouldn't be exposed in the outside because there is high chance of misuse & abuse. Risking the existence of human civilization for a moment of comfort, speedy service is not what we as a human beings stand for.

Even though the traditional method of the crime being done & the investigation being conducted ^{later} sounds lengthy & sometimes irrational. It is relatively better than risking & thinning the line of humanity.

Well articulated